

WORK MANAGEMENT PLATFORM SUBSCRIPTION AGREEMENT

Order No.: CAD-WOS-2024-0901

This Work Management Platform Subscription Agreement (this “Agreement”), effective as of September 1, 2024 (the “Effective Date”), is entered into by and between **Cadence Work OS, Inc.**, with principal offices at 410 Riverside Plaza, Suite 1200, Chicago, IL 60606 (“Cadence”), and **Contoso Marketing, LLC**, 1450 Harborview Avenue, Suite 600, Seattle, WA 98101 (“Customer”). Cadence and Customer are each a “party” and together the “parties.”

1. SUBSCRIPTION GRANT

- 1.1 Cadence grants Customer a non-exclusive, non-transferable right to access the **Cadence Work OS** platform (the “Service”)—a project and work-management tool providing task boards, Gantt timelines, resource planning, workload views, and reporting.
- 1.2 **Licensed Seats.** The subscription covers **80 named-user seats**, provisioned primarily for Customer’s media-buying and performance-marketing team. Additional seats may be added mid-term at the then-current per-seat rate, co-terminating with the current term.

2. TERM AND RENEWAL

- 2.1 **Initial Term.** Two (2) years from the Effective Date, expiring **August 31, 2026**.
- 2.2 **Automatic Renewal.** The subscription **renews automatically** for successive one (1) year terms unless either party delivers written notice of non-renewal **at least sixty (60) days** before the end of the then-current term. The renewal date is **September 1, 2026**, and the non-renewal notice deadline for the upcoming term is **July 2, 2026**.
- 2.3 Either party may terminate for material breach uncured within thirty (30) days of written notice.

3. FEES

- 3.1 **Subscription Fee.** Customer shall pay **USD \$360 per seat per year**, totaling **USD \$28,800 annually** for 80 seats, invoiced annually in advance, **net 30**.
- 3.2 **Renewal Increase.** Upon each renewal, the per-seat fee increases by a fixed **six percent (6%)** over the prior term’s per-seat rate.

4. DATA PROTECTION

- 4.1 Cadence processes Customer personal data contained in projects, tasks, and user accounts as a **processor** under the **Data Processing Addendum (Exhibit A)**, which is incorporated into and forms part of this Agreement.
- 4.2 Cadence shall: process Customer Data only on Customer’s documented instructions; maintain SOC 2 Type II security controls with encryption in transit and at rest; restrict sub-processors to those listed in the DPA; and notify Customer of any confirmed personal-data breach without undue delay and in any event within seventy-two (72) hours.

4.3 On termination, Customer may export its data for thirty (30) days, after which Cadence deletes it.

5. SUPPORT

Standard support (email + in-app, business hours) is included. A 24/7 premium tier is available under a separate order.

6. WARRANTIES AND LIABILITY

The Service is provided on a commercially reasonable-efforts basis. Cadence's aggregate liability shall not exceed the fees paid in the prior twelve (12) months, except for breaches of Section 4. Neither party is liable for indirect or consequential damages.

7. GOVERNING LAW

This Agreement is governed by the laws of the State of Illinois, without regard to its conflict-of-laws principles.

8. GENERAL PROVISIONS

- 8.1 Notices.** All notices under this Agreement shall be in writing and delivered to the addresses set forth above (or such other address as a party designates in writing) by personal delivery, nationally recognized overnight courier, or certified mail, and shall be deemed given upon receipt.
- 8.2 Entire Agreement; Amendment.** This Agreement, together with its Exhibits and any order(s), constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings. It may be amended only by a writing signed by both parties.
- 8.3 Assignment.** Neither party may assign this Agreement without the other's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.
- 8.4 Severability; Waiver.** If any provision is held unenforceable, the remaining provisions remain in full force and effect. No waiver of any breach shall constitute a waiver of any subsequent breach.
- 8.5 Force Majeure.** Neither party shall be liable for any delay or failure to perform due to causes beyond its reasonable control.
- 8.6 Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.

Accepted and agreed. The parties have executed this Agreement as of the dates below.

Cadence Work OS, Inc.

Contoso Marketing, LLC

Authorized Signature

By:
Name: M. Underwood
Title: VP Sales
Date: August 26, 2024

Authorized Signature

By:
Name: Elena Vasquez
Title: Director of Operations
Date: August 28, 2024